

Sri Phanish T N vs Smt Radha J on 30 September, 2022

M.F.A.No.606/2014

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IN THE HIGH COURT OF KARNATAKA AT BENGALURU

DATED THIS THE 30TH DAY OF SEPTEMBER 2022

PRESENT

THE HON'BLE MRS. JUSTICE K.S.MUDAGAL

AND

THE HON'BLE MR. JUSTICE S.RACHAIAH

MISCELLANEOUS FIRST APPEAL NO.606/2014(FC)

BETWEEN:

SRI.PHANISH T.N.

S/O T.N.NAGESWARA

AGED ABOUT 44 YEARS

PRESENTLY RESIDING AT NO.48,

1ST ROAD, DEFENCE LAYOUT

VIDYARANYAPURA, BANGALORE - 560 097 ...APPELLANT

(BY SRI.VIKRAM PHADKE, ADVOCATE FOR
SRI.N.G.PHADKE, ADVOCATE)

AND:

SMT.RADHA J

W/O PHANISH T N

AGED ABOUT 39 YEARS

RESIDING AT NO.219, 7TH MAIN

3RD CROSS, MARUTHINAGAR

VASATAPURA, BANGALORE - 560 062

PRESENTLY R/AT NO.66/1

YADALAM NAGAR, MARUTHINAGAR

MAIN ROAD, SUBRAMANYAPURA POST

BANGALORE - 560 061 ...RESPONDENT

(BY SRI.C.S.PRASANNA KUMAR, ADVOCATE)

THIS MISCELLANEOUS FIRST APPEAL IS FILED UNDER
SECTION 19(1) OF THE FAMILY COURT ACT READ WITH SECTION

M.F.A.No.606/2014

28 OF HINDU MARRIAGE ACT PRAYING TO SET ASIDE THE JUDGMENT AND DECREE DATED 27.07.2013 PASSED IN M.C.NO.2174/2005 ON THE FILE OF THE I ADDITIONAL PRINCIPAL JUDGE, FAMILY COURT, BANGALORE, DISMISSING THE PETITION FILED UNDER SECTION 13(1) (ia) AND (iii) OF HINDU MARRIAGE ACT.

THIS MISCELLANEOUS FIRST APPEAL HAVING BEEN HEARD AND RESERVED ON 21.09.2022, COMING ON FOR PRONOUNCEMENT OF JUDGMENT THIS DAY, K.S.MUDAGAL J., DELIVERED THE FOLLOWING:

JUDGMENT

"Whether the trial Court was justified in dismissing the petition of the appellant for decree of divorce?" is the question involved in this case.

2. The marriage of the appellant and the respondent was solemnized on 27.10.1999 at Bengaluru. Out of the said marriage, on 25.03.2002 the couple were blessed with a daughter by name Isiri. The appellant filed M.C.No.2174/2005 against the respondent under Section 13(1)(ia) & (iii) of Hindu Marriage Act, 1955 ('the Act, 1955' for short) before the I Addl. Principal Judge, Family Court, Bengaluru seeking dissolution of their marriage on the ground that even before the marriage the respondent was suffering from Schizophrenia and suppressing that fact the marriage was performed. He further alleged that after the marriage the symptoms of her mental illness were relapsed and then he came to know that even before the marriage she was suffering from the same. He alleged that under such condition the respondent used to become violent. She attempted to stab the child, stab herself and she had suicidal tendency. He claimed that during his stay in America with the respondent on his professional assignment due to the mental illness of the respondent he was put to lots of problems. Ultimately she left his house on 08.12.2004 without intimating him. Such suppression of the material fact and the condition of the respondent caused cruelty to him. He claimed that the respondent is suffering from incurable mental unsoundness which has made it impossible for him to continue the conjugal life. Hence he sought for decree of dissolution of marriage.

3. The respondent contested the petition denying the allegations of mental illness. She claimed that the appellant and his family members subjected her to cruelty with their unlawful demands, that caused her depression. Ultimately she was driven out from matrimonial home.

4. The appellant was examined as PW.1. On his behalf the doctor was examined as PW.2 and Exs.P1 to P41 were marked. The respondent was examined as RW.1. No documents were marked on her behalf. The trial Court on hearing the parties by the impugned judgment and decree dismissed the petition on the following grounds:

- i) The material particulars required were not pleaded.
- ii) As per the evidence of the doctor, the respondent's mental illness was curable one. Therefore, the case of the appellant does not fall under Section 13(1)(iii) of the Act.
- iii) Even after learning about the mental illness of the respondent, he got her treated and lived with her. That amounts to condonation of cruelty in terms of Section 23 of the Act.

Submissions of Sri Vikram Phadke, learned counsel for the appellant.

5. What is required to be pleaded in such petition is the material facts and not material particulars. Even otherwise the appellant has pleaded all the required facts and particulars which were within his knowledge as evident by the petition. The evidence on record abundantly shows that the respondent was suffering from incurable mental unsoundness much before the marriage. The respondent and her parents suppressed that material fact from the appellant and his family members while getting their consent for the marriage. Section 13(1)(iii) of the Act, 1955 does not contemplate the continuous incurable unsoundness of the mind. Intermittent unsoundness of mind is also covered under the said section. Only thing is such continuous or intermittent mental unsoundness shall cause the apprehension to the petitioner that he cannot reasonably expected to live with the respondent. The evidence on record clearly shows that due to her unsoundness mind, the respondent tried to stab the child, stab herself and had suicidal tendency, abusive not only to the appellant but also to her own parents. Under such circumstances, he cannot reasonably be expected to live with her. Moreover the trial Court wrongly interpreted the medical evidence to hold that mental unsoundness of the respondent is incurable. The appreciation of the evidence with regard to mental unsoundness of the respondent under the provisions of Section 13(1)(iii) of the Act, 1955 by the trial Court is unsustainable. Similarly the trial Court committed gross error in holding that the appellant has condoned the mental unsoundness of the respondent. Section 23(1)(b) of the Act, 1955 speaks of condonation of cruelty and not the condonation of mental unsoundness. The trial Court committed error in relying on the judgment cited by the respondent as each precedent has to be applied based on the facts of each particular case. The impugned judgment and decree is wholly unsustainable.

6. In support of his submissions he relies on the following judgments:

- i) Bhavnagar University vs. Palitana Sugar Mill (P) Ltd & ors¹
- ii) Harkirat Singh vs. Amarinder Singh² Submissions of Sri C.S.Prasanna kumar, learned counsel for the respondent.

7. The pleadings of the appellant were not in accordance with Rule 4 of Hindu Marriage Rules, 1956 ('the (2003)² SCC 111 AIR 2006 SC 713 Rules, 1956' for short) framed by this Court and Section 20 of the Act. Therefore, the trial Court was justified in holding that the pleadings of the appellant were inadequate. The medical evidence does not show that the mental unsoundness of the respondent

was not continuous one. The appellant gets the cause of action only if the respondent was suffering from the mental unsoundness as on the date of the petition as Section 13(1)(iii) employed the words 'has been suffering from mental unsoundness'. The medical records produced by the appellant himself showed that the divorce petition filed by him was the cause for relapsing of her mental unsoundness. His conduct shows that he did not attend to her medical needs and he ultimately deserted her. Therefore, in view of Section 23(1)(b) of the Act, he was not entitled to a decree of divorce as the documents produced by the appellant do not show that as on the date of petition, she was suffering from mental unsoundness. The said records pertain to the period prior to and subsequent to the filing of the petition. Therefore, Section 13(1)(iii) is not applicable. If the appellant claimed that his consent to marriage was taken fraudulently suppressing the material fact, his remedy was to file petition under Sections 12 of the Act and not Section 13(1)(iii) of the Act. The records show that the appellant did not bother to take care of the child. The very fact of the respondent taking care of the child goes to show that her mental condition is good. Therefore, no grounds to interfere with the impugned judgment and decree.

8. In support of his submissions, he relies on the following judgments:

- i) Balwinder Kaur vs. Hardeep Singh³
- ii) Ram Narain Gupta vs. Rameshwari Gupta⁴
- iii) Kollam Chandrasekhar vs. Kollam Padma
Latha⁵

ANALYSIS

Reg. material particulars/pleadings:

9. The claim of both the parties regarding adequacy of pleadings revolves around Rule 4 of the Rules, 1956 and Section 20 of the Act. Learned counsel for the respondent contends that Section 20 of the Act and Rule 4 of the Rules (1997)¹¹ SCC 701 (1988)⁴ SCC 247 (2014)¹ SCC 225 1956 require stating all particulars of the grounds of divorce and the same are not stated. The trial Court accepts that. Learned counsel for the appellant contends that the said provisions require only the particulars which are within the knowledge of the appellant/petitioner and the material facts, he has complied the same.

10. In view of the submissions, it is necessary to examine the relevant provisions of Section 20 of the Act and Rule 4 of the Rules, 1956.

Section 20 of the Act reads as follows:

"20. Contents and verification of petitions.--(1) Every petition presented under this Act shall state as distinctly as the nature of the case permits the facts on which the claim to relief is founded [and, except in a petition under section 11, shall also state]

that there is no collusion between the petitioner and the other party to the marriage.

(2) The statements contained in every petition under this Act shall be verified by the petitioner or some other competent person in the manner required by law for the verification of complaints, and may, at the hearing, be referred to as evidence."

11. The perusal of the above provision shows that Section 20(1) of the Act requires pleading the material facts on which the relief is founded.

Rule 4 of Hindu Marriage Rules, 1956 reads as follows:

"4. Contents of petition.- (1) In addition to the particulars specified in Section 20 every petition shall state.-

- (i)
- (ii)
- (iii)
- (iv)

(v) if the petition is for judicial separation or divorce the matrimonial offence alleged or other grounds upon which the relief is sought, together with full particulars thereof so far as such particulars are known to the petitioner viz.,-

12. Perusal of Rule 4 (1)(v) shows that the petitioner is required to plead the full particulars only so far as such particulars are within his knowledge. This Court framed the above said rules in 1956. Subsequent to that in 1967 this Court framed Karnataka Civil Rules of Practice, 1967 (for short 'Rules 1967'). In Rule 1 of 1956 Rules which deals with forms of proceedings, it was prescribed that the original petition under the Act shall be registered (H.M.) Mis.No..... of

19... Whereas Rule 5(b) of Rules, 1967 prescribes that the original proceedings in matrimonial cases shall be designated as "M.C." thereby the procedure prescribed in Rules 1956 regarding form of proceedings was deviated.

13. Further the present appeal arises out of the judgment of the family Court which was constituted under the Family Courts Act, 1984. Section 10 of the said Act prescribes the procedure generally. Section 10(1) of the said Act reads as follows:

"10. Procedure generally.-

(1) Subject to the other provisions of this Act and the rules, the provisions of the Code of Civil Procedure, 1908 (5 of 1908) and of any other law for the time being in force shall apply to the suits and proceedings [other than the proceedings under Chapter IX of the Code of Criminal Procedure, 1973 (2 of 1974)] before a Family Court and for the purposes of the said provisions of the Code, a Family Court shall be deemed to be a Civil Court and shall have all the powers of such court. -(1) Subject to the other

provisions of this Act and the rules, the provisions of the Code of Civil Procedure, 1908 (5 of 1908) and of any other law for the time being in force shall apply to the suits and proceedings [other than the proceedings under Chapter IX of the Code of Criminal Procedure, 1973 (2 of 1974)] before a Family Court and for the purposes of the said provisions of the Code, a Family Court shall be deemed to be a civil court and shall have all the powers of such court."

14. As per the above provision, in the procedural aspects the Code Of Civil Procedure or any other law for the time being has to be applied. Section 20 of the Family Courts Act has the overriding effect over the other laws in force. In view of such overriding provision in the Family Court's Act and Section 10 of the said Act in the proceedings before the Family Court the Civil Procedure Code applies. Thereby and in view of Order VI Rule 2 CPC the material facts on which the petitioner relies shall have to be pleaded in concise form. Moreover Section 20(1) of the Act also requires pleading of the material fact and not material particulars. Further, rule 4(v) of the Rules, 1956 requires to state only such particulars which are within the knowledge of the petitioner and not which are beyond his knowledge. One cannot be oblivious of the interplay of Section 20 of the Act, Rule 4(v) of the Rules, Section 10 and 20 of Family Courts Act and Order VI Rule 2 of CPC. Therefore, the interpretation that the petitioner shall plead all particulars of the matrimonial offence carries no merit.

15. Then the question is whether the appellant pleaded all material facts and the particulars within his knowledge. In para 3 of the petition the appellant pleaded the date and place of the marriage. In para 4 of the petition he says that after the respondent coming to his house for living together on 05.11.1999 he noticed she taking some tablets, about his enquiry with the respondent about such tablets, she and her family members telling him that she is taking such tablets for head injury suffered by her in scooter accident. In that para he also stated about he noticing her frustrated behaviour and enquiring about she consuming those tablets, her unwillingness to give the names of those tablets. He also states about she conducting in depressed manner and saying that she is so depressed because of not conceiving the child. On his insistence her parents taking her to the doctor etc.

16. In para 6 of the petition, appellant states about he flying to America with her on 28.08.2000 on a work assignment and about her strange behaviour, consuming tablets and he assuming that she might have been behaving in such a way because of her translocation from India to USA and the doctor revealing that her medicines are delaying her pregnancy and ultimately she conceiving in June 2001.

17. In para 7 of the petition he states about his return to India on 28.01.2002 for his visa renewal and his return to USA on 13.02.2002 and during that period he noticing vast changes in her behavioral patterns, he getting the respondent's parents to USA and the birth of his daughter on 25.03.2002.

18. In para 8 of the petition he has narrated about the respondent becoming violent, abusive after the birth of the baby, her attempts to stab herself, she suspecting her father, her attempt to stab the child, her parents' summoning the police, taking her to Methodist Medical Centre, Dr. Attaluri,

psychiatrist enquiring her parents and they being evasive.

19. In para 9 he has stated about the discharge of the respondent on 05.05.2002 from Methodist Medical Centre with a discharge note that she had post-partem depression, about the return of her parents to India on a ruse of back pain and he losing his job in September 2002 and his return to India with wife and child. He also stated about the revelations of the respondent that she was interested to marry her cousin brother and her father obstructed that.

20. In para 10 of the petition the appellant has stated that on 02.01.2003 he tracing a certificate issued by Dr.Ashok Pai, Manasa Nursing Home, Shimoga to the effect that during December 1998 the respondent was treated in his hospital as in-patient for Schizo affective psychosis, though shocked by such revelations he decided to continue the matrimonial relationship in the interest of minor child.

21. In para 11 of the petition he states about the hallucinations of the respondent that her father is abusing minor baby, picking up fights for silly reasons, abusing in foul language, she having violent mood swings and because of such variation in September 2004 she resuming her earlier medicines reluctantly. In para 12 he states about her hallucinations about the attempt of her father to kill the appellant, relapsing of her earlier psychiatric problem. In para 13 he states about he getting her treated in Abhaya Hospital for psychiatric problems and she revealed to the doctor that she is happy with the appellant and his parents and being scared of her parents and doctor opined that she has illusions and hallucinations.

22. In para 14 of the petition he states that on 08.12.2004 when he was in his office on duty the respondent leaving the house without information and his efforts to reach her on her phone in vain and he learning about she being in her parental house.

23. In para 15 of the petition he states about the respondent and her family members coming to his house and breaking open the door of the house and he filing complaint to Police and the child being in the custody of himself and his parents during that time.

24. In para 16 of the petition he states about the respondent having schizophrenia, due to that being violent and other particulars of her behaviour, her suicidal tendency. In para 17 he states that such behaviour of the respondent caused him mental and emotional cruelty and he cannot be reasonably expected to live with her due to such degree of her mental unsoundness. Ultimately he sought decree for divorce and permanent custody of the child.

25. Looking at the summary of the pleadings of the appellant, it cannot be said that the same lacked any material fact or particulars which was within the knowledge of the appellant. He was supposed to narrate which was within his knowledge. It is not the contention of the respondent that he knew other material facts and particulars also, he did not divulge them in his petition. Having regard to the above legal position and the pleadings of the appellant the trial Court was in grave error in holding that pleadings lack the material facts or particulars.

Reg. Section 13(1)(iii) and Section 13(ia) of the Act

26. The appellant contended that the respondent's mental disorder was so intense that it was not possible for him to live with her. According to him, her mental illness was incurable one. Whereas counsel for the respondent contends that to seek a decree under Section 13(1)(iii) of the Act, the mental unsoundness must be incurable one and continuous one. He further claims that the appellant failed to prove that the respondent is suffering from incurable mental unsoundness continuously. He also claims that as per the medical evidence adduced by the appellant himself he can lead life with her with better treatment to her medically as well as from his side.

27. The other contention is that as per the medical records, the divorce petition has precipitated her mental illness. Therefore, he cannot be permitted to reap the benefit of his own act. Whether the continuous incurable unsoundness of the mind is a sine qua non to seek decree under Section 13(1)(iii) of the Act can be found on reading the said provision.

Section 13(1)(iii) of the Act reads as under:

13. Divorce.- (1) xxxx

(i) xxxx

(ii) xxxx

(iii) has been incurably of unsound mind, or has been suffering continuously or intermittently from mental disorder of such a kind and to such an extent that the petitioner cannot reasonably be expected to live with the respondent.

Explanation.- In this clause,-

(a) the expression "mental disorder" means
mental illness, arrested or incomplete

development of mind, psychopathic disorder or any other disorder or disability of mind and includes schizophrenia;

(b) the expression "psychopathic disorder"

means a persistent disorder or disability of mind (whether or not including sub-normality of intelligence) which results in abnormally aggressive or seriously irresponsible conduct on the part of the other party, and whether or not it requires or is susceptible to medical treatment; or]

28. Reading of the above provision makes it clear that continuous incurable unsoundness of mind alone is not a sine qua non to seek a decree under the said provision. It shows that if the intermittent mental disorder is of such kind and such degree to make it reasonably impossible for the petitioner to live with the such spouse, he is entitled to seek decree of divorce. Such mental disorder includes Schizophrenia also. Explanation (b) to Section 13(iii) makes it clear that aggressive or seriously irresponsible conduct on the part of the other party whether susceptible to medical treatment or not also falls under psychopathic disorder.

29. In the light of the above said provisions, this Court has to examine whether the appellant has established that the respondent was suffering from such kind of mental disorder whether continuously or intermittently making it reasonably impossible for him to live with her.

30. To prove his case the appellant relied on the evidence of himself, PW.2-the psychiatrist of St.Marthas Hospital, the evidence of RW.1 herself and Exs.P2, P3, P8, P9, P11, P13, P16 to 21, P23 to 25. PW.1 reiterating and elaborating his pleadings deposed about the respondent marrying him without disclosing her mental illness, thereafter he noticing her indifferent behaviour, her aggressive conduct during their stay in India and USA, her attempt to stab herself and the child, the child Welfare authorities in USA taking the child to their custody and keeping respondent in lock up for one day and on his enquiry, he learning about the treatment of the respondent in Manasa Nursing Home, Shimoga, subsequently her father writing the apology letter Ex.P13 etc. In the entire cross examination of PW.1 it was not at all denied about the mental disorder of the respondent and the medical records and her treatment, only an attempt was made to state that because of his harassment she got the depression.

31. Further Ex.P2 the medical record of Manasa Nursing home, Shimoga shows that between 24.12.1998 and 30.12.1998 the respondent was treated as in patient in the said hospital for her mental disorder and she had continued her treatment upto 05.08.2003. Ex.P2 the hospital admission form, P3 the form with regard to the individual receiving the mental health services, Ex.P4 the report of child abuse, Ex.P5 Child Safety Plan, Ex.P6 and P7 the discharge instructions issued by Methodist Medical Centre of Illinois, Ex.P8 the complaint to the Peoria Police Department show that between 29.04.2002 and 13.05.2002 the respondent was dealt with by the Illinois department of children and family services and Police department on the allegation of endangering the health of her child, she was treated for her mental illness. The said evidence substantiates the contention of the appellant that during that period she attempted to stab her child due to her mental condition.

32. Ex.P9 her medical prescription dated 13.08.2002, P10 her screening record issued by NIMHANS hospital, Ex.P11 the medical certificate dated 02.01.2003 issued by Dr.K.A.Ashok Pai show that she was suffering from acute schizo affective psychosis and had the history of acute psychosis. Ex.P13 was the letter said to have been written by the father of the respondent admitting that the respondent was suffering from such mental illhealth even before the marriage and suppressing that the marriage was performed. The evidence of PW.1 with regard Ex.P13 was not impeached.

33. Ex.P15 to P21 show that in November 2004 the appellant got treated the respondent for her mental illhealth. Ex.P23 the admission record, Ex.P24 consultation record, Ex.P25 the discharge summary relating to the respondent maintained in St.Marthas hospital show that between 02.03.2008 and 29.04.2008 the respondent was treated as inpatient in St.Marthas Hospital.

34. Referring to the above said documents, PW.2 speaks of the treatment of the respondent in St.Marthas Hospital as inpatient. He states that the respondent was suffering from anxiety, decreased sleep at night, sadness of mood, crying spells, suicidal ideation, lack of interest in household activities and she was already treated three months in Shimoga. He speaks about she taking treatment in the hospital from 06.12.2006 to 28.01.2008 frequently. He also deposes that on 02.03.2008 the respondent had ran away from home refusing to go back and Police bringing her to the casualty. His evidence shows that respondent was violent and accusing her parents of pushing her to prostitution. She was diagnosed with manic episode, bipolar disorder with psychotic mixed features apart from Schizo affective disorder. He says that illness is not completely curable and there are risk of future episodes. Referring to an answer of PW.2 to the effect that manic episode, bipolar disorder, psychotic mixed features and schizo affective disorder have the treatment but cannot be 100% cured, it was argued that respondent's disease is curable. But, PW.2 in his cross examination made a clear and unequivocal statement that the mental disorder of the respondent is incurable.

35. The respondent herself in her cross examination admits about she taking treatment with Dr.Pai as inpatient before her marriage and she not divulging about the same to the appellant. She also admits about her stay with the appellant in America and during such stay she taking the tablets irregularly. Contrary to that in her further cross examination she states and she is not aware about her mental illness and she taking tablets which related to mental illness. She has admitted that on Police phoning them paramedix people admitted her to the Methodist Hospital in USA and the child was separated from her and she was kept under isolation. She further admits that the authorities in US returned the child to their custody only on the appellant giving an undertaking regarding the safety of herself and their child. She also admits that her sister in law getting her admitted in Abhaya Hospital though she denies that since she became aggressive in the absence of the appellant, she was taken to that hospital.

36. The medical evidence, evidence of PW.1 coupled with the admission of RW.1 clearly show that the respondent was suffering acute mental disorder within short intervals, she had suicidal tendency, she attempted to stab the child, stab herself and had ran away from the parental house, she had the hallucinations of her parents themselves being her predators. The appellant had to manage his profession and family both. The above said facts and circumstances show that reasonably it was not possible for him to live with her.

37. The mutual trust is the foundation of the institution of the marriage. The evidence on record clearly shows that suppressing the respondent's mental illness and she being treated for the same, she tied knot with him. Under the normal circumstances, anybody in his position feels cheated by the respondent and her parents. Such act amounts to cruelty to him. As per the appellant he noticed the respondent taking some tablets in the beginning of the marriage itself. At any rate, her mental illness was revealed to him as per his own records during 2002-2003.

38. No doubt such mental illness of the respondent made his life highly traumatic since the time of the episodes during their stay in USA. The respondent's father by Ex.P13 the letter dated 16.06.2003 expressed his remorse for suppression of such fact and sought apology. Even thereafter the appellant continued to stay with the respondent till respondent leaving his house in December 2004. In between he got her treated in Abhaya Hospital. As per Section 23(1)(b) of the Act, such conduct amounts to condonation of cruelty of respondent marrying him suppressing her mental disorder. Therefore, the dismissal of the petition under Section 13(1)(ia) does not call for interference of this Court.

39. So far as the claim under Section 13(1)(iii) learned counsel for the respondent interpreting the words 'has been' found in the said section strenuously argued that such medical condition should be as on the date of the petition and according to the petition the respondent separated from the appellant on 08.12.2004, the petition was filed on 17.11.2005, therefore, as on that day the appellant had know personal knowledge about her mental condition. Therefore, he claims that the petition was not maintainable. The evidence on record clearly shows that the respondent has been suffering from mental disorder at least since 1998. Ex.P15 to P21 show that upto December 2004 the respondent was treated by Jagdish of Abhaya Hospital. The medical evidence shows that even during the pendency of this petition she was treated for acute mental disorder in St.Marthas Hospital. Therefore, even if such contention has to be accepted it was for the respondent to show that as on the date of the petition she was cured of such mental disorder. But, there was no evidence to that effect. At any rate, such interpretation of Section 13(1)(iii) of the Act deserves no merit.

40. Referring to an entry in Ex.P23 regarding husband filing divorce petition it was contended that the appellant himself is responsible for her mental disorder. Therefore, Section 23(1)(b) of the Act bars him seeking the decree of divorce. That entry relied is made in the column meant for the history of the patient. Apparently history was given by the parents of the respondent. Moreover there is ample evidence to show that prior to marriage and during their conjugal cohabitation also she had acute mental disorder posing threats to herself, her child and the people around. Therefore, such contention deserves no merit.

41. The Hon'ble Supreme Court in para 59 of the judgment in Bhavnagar University's case held that a decision is an authority for which it is decided and not what can logically be deduced therefrom. It was further held that a little difference in facts or additional facts make a lot of difference in precedential value of a decision. In the light of the facts and circumstances of the case discussed above, the judgment in Bhavnagar University's case, the judgments in Balwinder Kaur's case, Ram Narayan's case and Kollam Chandrashekar's case referred to supra relied on by the learned counsel for the respondent cannot be justifiably applied to the facts of the present case.

Reg. child custody

42. In the petition the appellant also sought the custody of the minor child Isiri. The trial Court without even considering that point dismissed the entire petition. The child was born on 25.03.2002. Thus the child attained majority on 24.03.2020 pending these proceedings. Now she has the right to live with the parent of her choice. Therefore, prayer for permanent custody of the

child has become infructuous.

The trial Court without appreciating the pleadings, evidence, applicable law and the cumulative effect of the same with reference to Section 13(1)(iii) of the Act proceeded to dismiss the petition which has led to miscarriage of justice warranting the interference of this Court. Therefore, the following:

ORDER

i) The appeal is partly allowed.

ii) The impugned judgment and decree so far it relates to Section 13(1)(ia) of the Hindu Marriage Act, 1955 is hereby confirmed. The claim of the appellant for permanent custody of the daughter is disposed of as having become infructuous.

iii) The petition in M.C.No.2174/2005 under Section 13(1) (iii) of the Hindu Marriage Act, 1955 on the file of the trial Court is allowed.

iv) The marriage of the appellant and the respondent solemnized on 27.10.1999 at Bengaluru is hereby dissolved.

v) Having regard to the relationship between the parties, no order as to costs.

vi) Draw decree accordingly.

Sd/-
JUDGE

Sd/-
JUDGE

akc